

Tripura Educational Institutions (Prevention of Ragging) Act, 1990

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State of Tripura - Act

Tripura Educational Institutions (Prevention of Ragging) Act, 1990

TRIPURA

India

Tripura Educational Institutions (Prevention of Ragging) Act, 1990

Act 12 of 1990

Published on 10 September 1990

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Tripura Educational Institutions (Prevention of Ragging) Act, 1990

(Tripura Act No. 12 of 1990)

Last Updated 10th June, 2020

[Dated 10.09.1990]

An Act to prevent and eradicate the menace of ragging from the Educational Institutions situated in the State of Tripura.

Be it enacted by the Tripura Legislative Assembly in the Forty first Year of the Republic of India as follows :-

1.

Short title, extent and commencement.

(1)

This Act may be called the Tripura Educational Institution (Prevention of Ragging Act) 1990.

(2)

It extends to the whole of Tripura.

(3)

It shall come into force at once.

2.

Application of the Act.

- This Act shall apply to all the Educational Institutions situated in the State of Tripura whether or not they are Government or private Institutions.

3.

Definition.

- In this Act, unless the context otherwise requires, Ragging will mean the following kind of offence :-

Whoever, being a student in any Educational Institution, causes a fellow student to suffer physically or mentally by way of assault, intimidation, insult, tease, torment or any other form of torture commits ragging.

4.

Punishment.

- Whoever commits ragging shall be punished with imprisonment of either description for a term which may extend to four years or with fine or with both.

5.

Procedure.

- The offences of ragging shall be cognizable and non-bailable.

6.

Establishment of courts.

- The State Government may establish one or more special courts exclusively for trial of the cases under this Act and such courts may be presided over by a Judicial Magistrate or a special Judicial Magistrate appointed under section 13 of the Criminal Procedure Code.

7.

Disqualification for remaining as a student.

- Whoever, being a student in any Educational Institution, has been convicted under section 5, shall cease to be a student of that Institution and shall be deemed to have been expelled from the Institution with effect from date of his conviction.

8.

Eviction from hostel.

- During any investigation or trial of an offence under this Act no accused, who has been living in any hostel of the Institution, shall be entitled to continue his stay in that hostel.

9.

On a prayer made in this behalf by the Investigating Officer the special Court shall issue a direction to evict the accused from the hostel if he does not leave the hostel voluntarily at the commencement of the investigation or trial.

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